

CV-26-000462 CASAREZ, ENRIQUE vs WESTERN DENTAL SERVICES LLC – Plaintiff's Motion to Set Aside and/or Vacate Order Pursuant to Code of Civil Procedure 473 - DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: Civil Proc. Code §473 permits the Court to "relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." (Emphasis added). Plaintiff's belief that a failure to reserve a hearing to argue against a proposed tentative ruling automatically results in a decision against the party who failed to request a hearing is incorrect. Rather, Tentative Rulings are based on a review of the pleadings and arguments made in the moving and opposing papers. Additionally, in this case, there were no procedural defects or deficiencies that resulted in the ruling at issue. The Court's ruling at issue had nothing whatsoever to do with Plaintiff's misunderstanding of local hearing-reservation requirements, as evidenced by the fact that the Tentative Ruling is issued ahead of and typically is the basis of any request for a hearing, and the Court did not know and could not have known when the pleadings were under review and the Tentative Ruling issued that Plaintiff would fail to comply with court rules to request a hearing. Therefore, as the Court's ruling on Defendant's Demurrer and Motion to Strike was based on the merits of the pleadings

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Civil Proc. Code §473 permits the Court to "relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." (Emphasis added).

Plaintiff's belief that a failure to reserve a hearing to argue against a proposed tentative ruling automatically results in a decision against the party who failed to request a hearing is incorrect. Rather, Tentative Rulings are based on a review of the pleadings and arguments made in the moving and opposing papers. Additionally, in this case, there were no procedural defects or deficiencies that resulted in the ruling at issue.

The Court's ruling at issue had nothing whatsoever to do with Plaintiff's misunderstanding of local hearing-reservation requirements, as evidenced by the fact that the Tentative Ruling is issued ahead of and typically is the basis of any request for a hearing, and the Court did not know and could not have known when the pleadings were under review and the Tentative Ruling issued that Plaintiff would fail to comply with court rules to request a hearing.

Therefore, as the Court's ruling on Defendant's Demurrer and Motion to Strike was based on the merits of the pleadings - including Plaintiff's Opposition and Defendant's Response thereto - and was not the result of Plaintiff's failure to properly request a hearing on the Court's Tentative Ruling, the Court finds, notwithstanding the liberal application of this provision, that no basis exists in light of said provision to grant Plaintiff's request.

Based on the foregoing, even if Plaintiff provided new facts, circumstances and or evidence, which the Court finds that Plaintiff did not, reconsideration will not yield a different result. Code of Civ Pro §1008(a).

Accordingly, Plaintiff's Motion is hereby denied.

The following is the tentative ruling for a case calendared before Commissioner Richard Moths in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA: